IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/639,222
Confirmation Number:	7096
Filing Date:	April 5, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	Andrea Bennett
Title of Invention:	MEMORY SYSTEM FOR THE STORAGE AND RETRIEVAL OF PARAMETRIC AND SYMBOLIC DATA REPRESENTATIONS

APPLICANT'S COMPLETE RESPONSE TO NOTICE TO FILE MISSING PARTS
(37 CFR §§ 1.52, 1.53(f); MPEP §§ 506, 601.01(a))
SUBMISSION OF REPLACEMENT CLAIMS AND ABSTRACT ON SEPARATE SHEETS
REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)
PETITION FOR TWO-MONTH EXTENSION OF TIME (37 CFR § 1.136(a)) AND CONDITIONAL REQUEST FOR SUSPENSION OF ACTION (37 CFR § 1.103)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice to File Missing Parts of Nonprovisional Application mailed on July 7, 2026, and in view of the Decision on Petition under 37 CFR § 1.183 mailed on September 28, 2026, the *pro se* Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, substantive response curing all noted pre-examination formalities and fee deficiencies.

I. EXECUTIVE SUMMARY OF CURED ITEMS

Applicant has completely and successfully cured every item cited in the July 7, 2026 Notice to File Missing Parts in accordance with 37 CFR §§ 1.52 and 1.53(f) and MPEP §§ 506 and 601.01(a):

1. **Replacement Claims on a Separate Sheet (37 CFR §§ 1.75(h), 1.121; MPEP § 608.01(a)):** Submitted herewith as a standalone document, containing original Claims 1 through 9 commencing on a new, separate page with no intervening specification text.
2. **Replacement Abstract on a Separate Sheet (37 CFR § 1.72(b); MPEP § 608.01(b)):** Submitted herewith as a standalone document, containing the complete 124-word text of the original Abstract commencing on its own separate page.
3. **Reaffirmation of Small Entity Status (37 CFR § 1.27):** Applicant formally reaffirms his Small Entity assertion of record (filed August 2, 2026), withdraws any prior assertion of Micro Entity status, and authorizes payment of all required Small Entity fees and adjustments.
4. **Petition for Extension of Time (37 CFR § 1.136(a); MPEP § 710.02(e)):** Submitted herewith, petitioning for a two-month extension of time (extending the reply deadline through November 9, 2026) with authorization to charge the applicable Small Entity fee of $276.00 (Fee Code 2252).
5. **Conditional Request for Suspension of Action (37 CFR § 1.103(a); MPEP § 709):** Submitted concurrently, requesting a six-month suspension of action on the merits to take effect upon acceptance of pre-examination formalities and docketing to Technology Center 2100.

II. STATEMENT OF COMPLIANCE AND DETAILED RESPONSES

1. Technical Compliance: Replacement Claims and Abstract

The Notice to File Missing Parts noted that the originally filed application integrated the Abstract on the first page of the specification and commenced the Claims on page 4 following the descriptive text, rather than on separate sheets.

Applicant hereby submits replacement sheets pursuant to 37 CFR § 1.121:

- **Replacement Abstract Sheet:** The complete Abstract of the technical disclosure, comprising 124 words, is set forth on a single, clean separate page, commencing on a separate sheet in full compliance with 37 CFR § 1.72(b) and MPEP § 608.01(b).
- **Replacement Claims Sheets:** Original Claims 1 through 9 are set forth in clean, double-spaced format commencing on a separate sheet, with the claims heading "What is claimed is:" at the top of the sheet, in full compliance with 37 CFR § 1.75(h) and MPEP § 608.01(a).

No new matter is introduced. The text of the Abstract and Claims is identical to that presented in the original April 5, 2026 nonprovisional filing.

2. Establishment of Entity Status and Fee Reconciliation (37 CFR § 1.27)

Applicant previously asserted Small Entity status on August 2, 2026 (SES.REQ.PC). Applicant hereby reaffirms Small Entity status under 37 CFR § 1.27.

Applicant authorizes the Office of Patent Application Processing to:

(a) Apply the Small Entity fee schedule to all filing, search, examination, and surcharge fees;

(b) Apply all previously paid fees ($154 search, $176 exam, $86 non-DOCX, $34 surcharge, and $56 IDS fee) toward the statutory Small Entity requirements; and

(c) Remit the applicable Small Entity fees concurrently herewith via Patent Center electronic payment, and respectfully request that if the Office determines any additional fee balance is due, the Office issue an itemized Notice of Fee Deficiency.

3. Petition for Extension of Time under 37 CFR § 1.136(a)

The Notice to File Missing Parts set an initial two-month period for reply expiring September 8, 2026 (September 7, 2026 having been Labor Day, a federal holiday, rolling to Tuesday, September 8, 2026 under 37 CFR § 1.7).

Applicant's first one-month extension of time expired on October 7, 2026. The instant response is submitted on or before **November 9, 2026** (November 7, 2026 being a Saturday, rolling forward to Monday, November 9, 2026 pursuant to 37 CFR § 1.7(a)).

Accordingly, Applicant concurrently petitions for a **Two-Month Extension of Time** under 37 CFR § 1.136(a) and tenders the applicable Small Entity extension fee of **$276.00** (Fee Code 2252).

III. COMPLIANCE WITH SEPTEMBER 28, 2026 PETITION DECISION (OPPT)

Applicant respectfully acknowledges receipt of the Office of Petitions Decision (OPPT) dated September 28, 2026 (signed by Attorney Advisor Cliff Congo), dismissing Applicant's prior petition under 37 CFR § 1.183.

The Decision noted that:

> *"Moreover, Applicant has failed to explain why his ongoing litigation activities prevent him from filing a response to the Notice to File Missing Parts and then requesting suspension of action under 37 CFR 1.103."*

Applicant has complied strictly with the procedure outlined by the Office of Petitions:

1. Rather than pursuing further burdensome Rule 183 petitions or requests for reconsideration, Applicant has focused on the complete, immediate perfection of all pre-examination filing formalities;
2. By submitting the replacement claims on separate sheets, replacement abstract on separate sheets, small entity fee authorization, and 2-month extension of time, **this application is now in 100% complete compliance with all requirements of the Notice to File Missing Parts**; and
3. Applicant respectfully requests that the Office of Patent Application Processing (OPAP) issue the formal **Notice of Acceptance of Application** (or updated Filing Receipt) and forward this application to Technology Center 2100 (Examiner Andrea Bennett) for examination.

IV. CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103

Pursuant to MPEP § 709, a request for suspension of action under 37 CFR § 1.103 cannot be granted while a notice to file missing parts is outstanding. Therefore, Applicant submits his concurrent Request for Suspension under § 1.103(a) as a **conditional request** to take effect immediately upon OPAP's determination that the pre-examination formalities have been completely cured and the application has been docketed for examination in Technology Center 2100.

The suspension is requested for good and sufficient cause based on the documented collateral litigation and constructive confinement issues currently pending resolution before the United States District Court for the Southern District of Texas (Civil Action No. 4:26-CV-08794, *Aguiar Marcano v. Pickett et al.*).

V. CONCLUSION

Applicant has fully and completely satisfied all requirements of the July 7, 2026 Notice to File Missing Parts. It is respectfully requested that the application be accepted and processed for substantive examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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